

1 Name of Person Asking for Protection:(See form DV-100, item **1**):

Stephen Russell

2 Your Name:

Tara Walsh

Your lawyer in this case (if you have one):

Name: Audrey T. Courson State Bar No.: 291039

Firm Name: Law Offices of Audrey T. Courson

Address (If you have a lawyer for this case, give your lawyer's information. If you do not have a lawyer and want to keep your home address private, give a different mailing address instead. You do not have to give your telephone, fax, or e-mail.):

Address: 100 Pine Street, Suite 1250

City: San Francisco State: CA Zip: 94111

Telephone: (415) 745-3681 Fax: (415) 745-3301

E-Mail Address: audrey@coursonlaw.com

Clerk stamps date here when form is filed.

Fill in court name and street address:

Superior Court of California, County of
San Francisco
400 McAllister Street

San Francisco, CA 94102
Unified Family Court

Fill in case number:

Case Number:
FPT-18-377425

**3 Use this form to respond to the Request for Domestic
Violence Restraining Order (form DV-100).**

- Fill out this form and take it to the court clerk.
- Have the person in **1** served by mail with a copy of this form and any attached pages. (See form DV-250, *Proof of Service by Mail*.)
- For more information, read form DV-120-INFO, How Can I Respond to a Request for Domestic Violence Restraining Order?
- This form is for a response to a restraining order request. For more information about how to request your own restraining order, read form DV-505-INFO and form DV-120-INFO (see the section called "What if I need a restraining order against the other person?")

The judge will consider your Response at the hearing.Write your hearing date, time, and place from form DV-109, *Notice of Court Hearing*, item **3**, here:**Hearing
Date** →

Date: 8-8-18

Time: 8:30 a.m.

Dept.: 404

Room:

You must obey the orders in Form DV-110, Temporary Restraining Order, until the hearing. At the hearing, the court may make restraining orders against you that could last up to five years and could be renewed.

4 ☒ Relationship to Person Asking for Protection

- a. ☐ I agree to the relationship listed in item **4** on form DV-100.
- b. ☒ I do not agree that the other party and I have or had the relationship listed in item **4** on form DV-100 because: I did not live with Petitioner in San Francisco.

5 ☒ Other Protected People

- a. ☐ I agree to the order requested.
- b. ☒ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

This is not a Court Order.

6 ☒ **Personal Conduct Orders**

- a. ☐ I agree to the orders requested.
b. ☒ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

7 ☒ **Stay-Away Order**

- a. ☐ I agree to the order requested.
b. ☒ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

8 ☒ **Move-Out Order**

- a. ☐ I agree to the order requested.
b. ☒ I do not agree to the order requested, ☐ but I would agree to: _____
I do not live with Petitioner

(Specify your reasons in item 25, page 5, of this form.)

9 **Guns or Other Firearms or Ammunition**

If you were served with form DV-110, Temporary Restraining Order, you must turn in any guns or firearms in your immediate possession or control. You must file a receipt with the court from a law enforcement agency or a licensed gun dealer within 48 hours after you received form DV-110.

- a. ☒ I do not own or have any guns or firearms.
b. ☐ I ask for an exemption from the firearms prohibition under Family Code section 6389(h) because (specify): _____
c. ☐ I have turned in my guns and firearms to law enforcement or sold them to, or stored them with, a licensed gun dealer. A copy of the receipt showing that I turned in, sold, or stored my firearms (check all that apply):
☐ is attached ☐ has already been filed with the court.

10 ☒ **Record Unlawful Communications**

- a. ☐ I agree to the order requested.
b. ☒ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

11 ☐ **Care of Animals**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

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12 ☐ **Child Custody and Visitation**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested. *(Specify your reasons in item 25, page 5, of this form.)*
c. ☐ I am not the parent of the child listed in form DV-105, *Request for Child Custody and Visitation Orders*.
d. ☐ I ask for the following custody order *(specify)*: _____

- e. ☐ I do ☐ I do not agree to the orders requested to limit the child's travel as listed in form DV-108, *Request for Order: No Travel With Children*.

You and the other parent may tell the court that you want to be legal parents of the children (use form DV-180, Agreement and Judgment of Parentage).

13 ☐ **Child Support** *(Check all that apply):*

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested. *(Specify your reasons in item 25, page 5, of this form.)*
c. ☐ I agree to pay guideline child support.

Whether or not you agree to pay support, you must fill out, serve, and file form FL-150, Income and Expense Declaration, or form FL-155, Financial Statement (Simplified).

14 ☐ **Property Control**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

15 ☐ **Debt Payment**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

16 ☐ **Property Restraint**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

17 ☐ **Spousal Support**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

Whether or not you agree, you must fill out, serve, and file form FL-150, Income and Expense Declaration.

This is not a Court Order.

**Response to Request for Domestic Violence
Restraining Order**
(Domestic Violence Prevention)

Tara Walsh

18 ☐ **Rights to Mobile Device and Wireless Phone Account**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

19 ☐ **Insurance**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

20 ☐ **Lawyer's Fees and Costs**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

- c. ☐ I request the court to order payment of my lawyer's fees and costs.

Whether or not you agree, you must fill out, serve, and file form FL-150, Income and Expense Declaration.

21 ☐ **Payments for Costs and Services**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

22 ☐ **Batterer Intervention Program**

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

23 ☐ **Other Orders** *(see item 22 on form DV-100)*

- a. ☐ I agree to the order requested.
b. ☐ I do not agree to the order requested, ☐ but I would agree to: _____

(Specify your reasons in item 25, page 5, of this form.)

24 ☐ **Out-of-Pocket Expenses**

I ask the court to order payment of my out-of-pocket expenses because the temporary restraining order was issued without enough supporting facts. The expenses are:

Item: _____ Amount: \$ _____ Item: _____ Amount: \$ _____

You must fill out, serve, and file form FL-150, Income and Expense Declaration.

This is not a Court Order.

25 ☒ **Reasons I Do Not Agree to the Orders Requested**

Explain your answers to each of the orders requested (*give specific facts and reasons*):

☒ Check here if there is not enough space below for your answer. Put your complete answer on an attached sheet of paper and write "DV-120, Reasons I Do Not Agree" as a title.

See attached declaration and Respondent's Memorandum of Points and Authorities in Opposition to Petitioner's Request for Domestic Violence Restraining Order.

26 Number of pages attached to this form, if any: 3

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: 8-7-18

Tara Walsh
Type or print your name

▶ 
Sign your name

Date: 8-7-18

Audrey T. Courson
Lawyer's name, if you have one

▶ 
Lawyer's signature

This is not a Court Order.

1 ***Russell v. Walsh***
2 **FPT-18-377425**
3 **Attachment to DV-120, Reasons I Do Not Agree**

4 1. I, TARA WALSH, am the Respondent in this action. All of the information
5 contained herein is true to the best of my knowledge, and I would offer the same if called to
6 testify.

7 2. I direct the Court to also refer to my Memorandum of Points and Authorities in
8 Opposition to Petitioner's Request for Domestic Violence Restraining Order filed herewith.

9 3. I met Petitioner in May 2015 in New York City. Throughout our relationship,
10 Petitioner abused me by doing the following: he constantly verbally abused me; he controlled
11 where I went and who I could hang out with; he isolated me from friends and family; he
12 repeatedly threatened and intimidated me; he destroyed my personal property; he violated my
13 privacy; he stalked me; and he put me in reasonable apprehension of fear on a daily basis.

14 4. I attempted to escape our toxic relationship several times but was always coerced
15 or manipulated into staying with Petitioner.

16 5. Petitioner has an unhealthy, obsessive fear that he is constantly being spied on and
17 his places of residence are bugged with spying devices. He has destroyed several items of my
18 property claiming they are not "secure." He hired fulltime security personnel to watch over him
19 but has gone through three different security companies over the past two years due to his mental
20 instability. Petitioner also has a substance abuse problem and is addicted to Adderall and cocaine.

21 6. I never moved to San Francisco to be with Petitioner after our baby was born. I
22 was forced to come to San Francisco in March 2018, because Petitioner demanded that if I did not
23 come, he would cut me off financially and immediately end our romantic relationship.

24 7. While I was in San Francisco from March 3, 2018 until June 9, 2018, I felt like a
25 prisoner. Petitioner had his security team watching my every move and controlling what I did. I
26 was not allowed to go on walks alone or even pick up my own food. I was constantly verbally
27 abused by Petitioner and told I was mentally ill.
28

1 8. In May 2018, I witnessed Petitioner have what can only be best described as
2 psychotic, drug induced episodes. During these episodes, Petitioner took high dosages of Adderall
3 and did not sleep for over 24 hours. He was up all night at the apartment where I and Evie were
4 staying with him and was tearing the place apart to search for spying devices.

5 9. The first incident occurred in the early afternoon after Petitioner had not slept all
6 night from binging on Adderall. Petitioner was clearly out of touch with reality and believed he
7 had been poisoned from gas coming out of the vent in the shower (which he disassembled). He
8 had also broken the hinge on the window of the apartment (on the 55th floor) in an attempt to
9 view the apartment below, as he believed “agents” were located there. Petitioner created a
10 dangerous, disturbing situation for Evie and I. I put 100mg of Seroquel in Petitioner’s red wine,
11 which is a similar dose he would often take to help him sleep. Seroquel at this dosage has no
12 therapeutic affect and purely used as a sleeping pill.

13 10. The second incident also occurred early in the afternoon after the Petitioner, again,
14 was up all night ingesting Adderall. Petitioner had broken the large coffee table in the living room
15 and put two large holes in the living room wall. Petitioner again believed poisonous gas was
16 leaking from the wall to intentionally poison him. I tried reasoning with Petitioner to get him to
17 calm down, but it was nearly impossible. The nanny, Abrehat Tedla (“Nanny”), and security
18 guard, Bryan Crutcher, watched me as I put Seroquel in Petitioner’s wine. The Nanny helped
19 crush the pill into a fine powder and mix it with another cup to dilute the powder into the
20 wine. Thereafter, Bryan Crutcher poured himself a glass of wine. I asked him why he was
21 drinking so early to which he replied: “I am drinking so he sees me drinking and drinks his faster
22 (referring to wine with Seroquel).” At that time, me, the Nanny and security were desperate to
23 calm Petitioner down, as he was a danger to himself and everyone else.

24 11. It was only on these two occasions, in May 2018, that I put Seroquel in
25 Petitioner’s wine. I did this out of fear for my safety and the safety of our daughter. The Seroquel
26 was only meant to help Petitioner calm down from his Adderall induced psychosis.

12. As Petitioner points out, I willingly told Petitioner's psychiatrist, Dr. Gopal, that I had put Seroquel in Petitioner's wine, because I did not know what else to do: "sometimes when he is out of his mind on drugs and won't sleep I have put Seroquel in his wine."

13. I regularly take prescribed Seroquel to help me fall asleep at night. **Petitioner has told me on several occasions that he has taken my Seroquel, in the same dosages, to also help him sleep at night.** Moreover, I told Petitioner after I put the Seroquel in his wine that I did it to help him calm down from his psychotic episode. Petitioner understood why I did this and told me it was “ok.”

14. On June 9, 2018, I was finally able to flee from Petitioner's domestic violence and return back to my home in New York. Ever since my temporary order of protection was granted, I have felt a sense of safety and relief.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: August 7, 2018


Tara Walsh